

Industrial Employment (Standing Orders) Tamil Nadu Amendment) Act, 1960

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State of Tamilnadu- Act

Industrial Employment (Standing Orders) Tamil Nadu Amendment) Act, 1960

TAMILNADU

India

Industrial Employment (Standing Orders) Tamil Nadu Amendment) Act, 1960

Act 24 of 1960

Published on 21 October 1960

Commenced on 21 October 1960

[This is the version of this document from 21 October 1960.]

[Note: The original publication document is not available and this content could not be verified.]

Industrial Employment (Standing Orders) Tamil Nadu Amendment) Act, 1960

(Tamil Nadu Act

24 of 1960

)

Statement of Objects and Reasons - Industrial Employment (Standing Orders) Tamil Nadu Amendment) Act, 1960 (Tamil Nadu Act 24 of 1969). - In section 2(c) of the Industrial Employment (Standing Orders) Act, 1946 (Central Act XX of 1946), the Certifying Officer is defined as "the Labour Commissioner wherever he exists, or in his absence, an officer appointed by the appropriate Government by notification in the Official Gazette to exercise in such area as may be specified in the notification the functions of a Certifying Officer under this Act". In this State, the Commissioner of Labour

is functioning as the Certifying Officer under the Act. The Industrial Employment (Standing Orders) Act, 1946, applies to establishments wherein 100 or more workmen are employed. With the application of that Act to all factories as defined, in the Factories Act, 1948 (Central Act 63 of 1948), about 4,546 additional factories will submit standing orders for certification. It is necessary and desirable that the certification of standing orders of all these factories is completed as expeditiously as possible. If the Commissioner of Labour alone were to be the Certifying Officer, it will take a long time to complete the work of certification. It is, therefore, necessary to amend the Act suitably making provision therein for appointment of additional officers.

There is at present no provision in the Act enabling the State Government to prescribe any fee for the certification of standing orders or for the modification thereof. As it is considered necessary to levy a small fee, it is proposed to amend section 15 of the Act suitably to empower the State Government to make rules prescribing the fee.

The Bill seeks to achieve the above objects.

Published in Part IV-A, pages 158-159 of the Fort St. George Gazette Extraordinary, dated the 18th April 1960.

Received, the assent of the President on the 21st October 1960 and first published in the Fort St. George Gazette, dated the 2nd November 1960.

An Act further to amend the Industrial Employment (Standing Orders) Act, 1946, in its application to the [State of Tamil Nadu]

[Substituted for 'State of Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended, by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Whereas it is expedient further to amend the Industrial Employment (Standing Orders) Act, 1946 (Central Act XX of 1946), in its application to the [State of Tamil Nadu]

[Substituted for 'State of Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended, by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

for the purpose hereinafter appearing;

Be it enacted in the Eleventh Year of the Republic of India as follows:-

1.

Short title, extent and commencement.

(1)

This Act maybe called the Industrial Employment (Standing Orders) [Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended, by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Amendment Act, 1960.

(2)

It extends to the whole of the [State of Tamil Nadu]

[Substituted for 'State of Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended, by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

(3)

It shall come into force on such date as the State Government may, by notification, appoint.

2.

Amendment of section 2 Central act XX of 1946.

- To clause (c) of section 2 of the Industrial Employment (Standing Orders) Act, 1946 (Central Act XX of 1946), the following proviso shall be added, namely:-

"Provided that the State Government may, in relation to industrial establishments in respect of which it is the appropriate Government, appoint, by notification in the Official Gazette, any officer subordinate to the Labour Commissioner to exercise, in such area as may be specified in the notification, the functions of a Certifying Officer under this Act, and any officer appointed as aforesaid may exercise those functions, whether or not the Labour Commissioner is absent."

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